

**IN THE STATE COURT OF GLYNN COUNTY**

**STATE OF GEORGIA**

|                               |   |                            |
|-------------------------------|---|----------------------------|
| <b>STATE OF GEORGIA</b>       | : | <b>CASE NO.: 24CR13237</b> |
|                               | : |                            |
| <b>v.</b>                     | : |                            |
|                               | : |                            |
| <b>AUSTIN TYLER UNDERWOOD</b> | : |                            |
| <b>DEFENDANT.</b>             |   |                            |

**MOTION FOR PSYCHOLOGICAL EVALUATION**

COMES NOW, the Defendant, who by and through counsel, respectfully moves to this Honorable Court as follows:

1.

The Defendant, **AUSTIN TYLER UNDERWOOD**, currently resides at 362 Strickland Road Brunswick, Georgia 31523

2.

The Defendant is charged in the above-referenced matter with Following Too Close and Obstruction (m).

3.

Observations which have led to this request are the Defendant's behavior at arraignment June 2, 2025, and subsequent interactions with staff attempting to assign appointed counsel to represent him, whereupon he was intermittently apparently unable to comprehend his conversations with his attorney, is argumentative and combative, disordered in his interactions and thinking, and unable to assist in the orderly preparation of his case.

4.

The specific mental health history for the Defendant is unknown, although he reports prior diagnosis of PTSD.

5.

The above-named individual requests mental health consultation, regarding the questions of:

a) **Defendant's competency to stand trial:** whether the Defendant is capable of understanding the nature and object of the proceedings;

whether the Defendant comprehends his own condition in reference to the proceedings against him; and, whether the Defendant is capable of rendering to counsel assistance in providing a proper defense.

b) **Defendant's degree of criminal responsibility for his actions at the time of the alleged offense and mental competency at the time of the alleged offense:** whether or not the Defendant had the mental capacity to distinguish right from wrong in relation to the alleged acts underlying the offenses charged; whether or not the presence of a delusional compulsion overmastered his will to resist committing the alleged acts underlying the offenses charged.

c) **Any recommendations for disposition and treatment.**

6.

The Defendant is without personal or family financial resources, is indigent, and has qualified for appointed counsel on this matter.

7.

The Officials involved in this case are Judge Bart Altman, Solicitor General Maria Lague, and Kathleen W. Williams, represents the Defendant.

8.

The Defendant is aware of no court dates scheduled on this matter at present.

9.

The Defendant requests that the requested PRE-TRIAL EVALUATION be served on Judge Bart Altman and Kathleen W. Williams, receive a copy of the report to the court under separate cover.

WHEREFORE, Defendant prays:

- (a) That the Court enter an Order directing that the Department of Human Resources (or Forensic Psychiatry Science) conduct an examination of the Defendant to provide treatment to the Defendant, if appropriate, and to provide to this Court a report of diagnosis, prognosis and its findings as to the issues discussed in Paragraph Five above;
- (b) That the Court enter an Order that the department or service arrange with the County Sheriff or his lawful deputies for the

prompt examination of the said Defendant in Brunswick, Georgia, or any legally suitable facility, there to be given whatever psychiatric and physical examination, evaluation, and treatment deemed to be necessary and proper by the authorities of the said hospital;

- (c) That the Court enter an Order finding it appropriate for an such evaluation to conducted at public expense;
- (d) That the Court enter an Order that the Clerk of Court is hereby ordered to serve a copy of the foregoing Motion and Order upon the Director of Forensic Services Program, Georgia Regional Hospital at Savannah; and
- (e) For such other and further relief as this Court deems just and appropriate.

This June 03, 2025.



Kathleen Willcox Williams  
Attorney for Defendant  
Georgia Bar No. 760316

1712 Ellis Street  
Brunswick, Georgia 31520  
Tel.: (912) 275-6235  
kww@willcox-law.com

**CERTIFICATE OF SERVICE**

I hereby certify that I have served opposing counsel with the foregoing Motion for Psychological Evaluation by email/efile.

This June 03, 2025.



Kathleen Willcox Williams  
Attorney for Defendant  
Georgia Bar No. 760316

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Brunswick, Georgia 31520  
Tel.: (912) 275-6235  
kww@willcox-law.com